

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONSE OF OURARING INC. AND OURA HEALTH OY TO THE FIRST
AMENDED COMPLAINT UNDER SECTION 337 OF THE TARIFF ACT OF 1930, AS
AMENDED, AND NOTICE OF INSTITUTION OF INVESTIGATION**

Respondents:

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Pursuant to Commission Rule 210.13, 19 C.F.R. § 210.13, Ouraring Inc. and Oura Health Oy (collectively, “Oura”) hereby respond as follows to the Verified First Amended Complaint under Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337 (“Complaint”), filed by Samsung Electronics Co., Ltd. (“SEC”) and Samsung Electronics America, Inc. (“SEA”) (collectively, “Samsung”) on January 5, 2026, including any supplements thereto, and the Notice of Institution of Investigation issued by the International Trade Commission. 91 Fed. Reg. 11, 2153-54 (Jan. 16, 2026).

Oura denies that it has engaged in any acts of unfair competition or violated Section 337 of the Tariff Act of 1930, as amended, by importing into the United States, selling for importation into the United States, or selling within the United States after importation any product or any component thereof that infringes, directly or indirectly, literally or under the doctrine of equivalents, by contribution and/or inducement, any asserted claim of United States Patent Nos. 10,642,359 (“the ’359 Patent”), 10,945,677 (“the ’677 Patent”), 10,231,675 (“the ’675 Patent”), and 10,978,789 (“the ’789 Patent”) (collectively, the “Asserted Patents”). Oura further denies that any of claims 1-2, 4, 7-8, 10, 14-15, and 20 of the ’359 Patent; claims 1-7, 9-14, and 16-20 of the ’677 Patent; claims 13-20 of the ’675 Patent; and claims 7-10 of the ’789 Patent (collectively, the “Asserted Claims”) are valid or enforceable. Except as specifically admitted herein, Oura denies all allegations of the Complaint and all supplements thereto. Any factual allegation admitted below is admitted only as to that specific fact and not as to any purported conclusion, characterization, implication, or speculation that might follow from the admitted fact.

Oura’s responses reflect its current knowledge. Oura is still collecting and reviewing all of the information that may be relevant and necessary to respond to the matters raised in the Complaint. To the extent that any allegations of the Complaint and supplements thereto refer to or

rely upon information not previously supplied to Oura, Oura is without information sufficient to admit or deny such allegations, and therefore denies the same. Oura reserves the right to take such further positions and raise additional defenses as may become apparent as the result of further information that may be discovered subsequent to the filing of these Responses.

ADMISSIONS AND DENIALS OF SPECIFIC ALLEGATIONS

Oura responds to the numbered paragraphs of the Complaint as follows:

I. INTRODUCTION

1. Oura admits that Samsung allegedly filed the Complaint under Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337 (“Section 337”), but denies all liability. Oura denies that it unlawfully imports into the United States, sells for importation into the United States, or sells within the United States after importation certain wearable devices. Oura denies infringement of the Asserted Patents.

2. Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 2 and, on that basis, denies the same.

3. Oura admits that Samsung names Ouraring Inc. and Oura Health Oy as proposed Respondents. Oura denies that it unlawfully manufactures, imports, sells for importation, sells after importation, services, or repairs, among other things, certain wearable devices, such as smart rings (the “Accused Products”). Oura denies the Accused Products incorporate, without license, any technologies allegedly developed by Samsung or allegedly protected by patents issued to and owned by SEC.

4. Oura admits that Samsung has included what it purports to be copies of the Asserted Patents as Exhibits 1-4. Oura admits that Samsung has included a list of what it purports to be foreign counterparts to the Asserted Patents as Exhibit 9. Oura admits that Samsung has included what it purports to be copies of the assignment records for each of the Asserted Patents at Exhibits

5-8. To the extent a further response is required, Oura lacks sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 4 of the Complaint and, therefore, denies them.

5. Oura admits that Confidential Exhibit 10 purports to be a list of all licensees to the Asserted Patents. To the extent a further response is required, Oura lacks sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 5 of the Complaint and, therefore, denies them.

6. Oura denies that Samsung has established a domestic industry as required by 19 U.S.C. §§ 1337(a)(2) or (3) exists in the United States relating to the technology allegedly protected by the Asserted Patents. Paragraph 6 states legal conclusions or opinions regarding the Asserted Patents, no response is required. To the extent a response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 6 and, on that basis, denies the same.

7. Oura admits that Samsung seeks various relief against Oura in its Complaint. Oura denies that Samsung is entitled to as relief a permanent limited exclusion order under 19 U.S.C. § 1337(d) barring from entry into the United States allegedly directly infringing or indirectly infringing wearable devices manufactured or sold by or on behalf of Oura. Oura denies that Samsung is entitled to as relief a permanent cease and desist order under 19 U.S.C. § 1337(f) prohibiting Oura from marketing, distributing, selling, offering for sale, warehousing inventory for distribution, or otherwise transferring or bringing into the United States allegedly infringing wearable devices.

II. COMPLAINANTS

8. Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 8 and, on that basis, denies the same.

9. Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 9 and, on that basis, denies the same.

10. Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 10 and, on that basis, denies the same.

11. Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 11 and, on that basis, denies the same.

12. Oura admits that Exhibit 12 purports to be a 2024 Annual Report relating to Samsung Electronics Co., Ltd.. Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 12 and, on that basis, denies the same.

III. RESPONDENTS

13. Oura admits that Ouraring Inc. is a Delaware corporation with its principal place of business at 222 Kearny Street, San Francisco, California 94108.

14. Oura admits that Oura Health Oy is a Finnish company with its principal place of business at Elektriikkatie 10, 90590, Oulu, Finland.

15. Oura admits that Ouraring Inc. is a wholly-owned subsidiary of Oura Health Oy. Oura admits that Oura Health Oy was founded in Finland in 2013. Oura admits that Oura Health Oy was formerly known as JouZen Oy. Oura admits that the JouZen Oy name was subsequently changed to Oura Health Oy in 2017.

IV. THE TECHNOLOGY AND PRODUCTS AT ISSUE

16. Oura admits that, pursuant to Commission Rule 210.12(a)(12) and 210.10(b)(1), Samsung purports to identify the technology at issue as relating to smart rings having biosensing capabilities.

17. Oura admits that Samsung purports to identify the Accused Products as wearable devices, specifically wearable biosignal interfaces and an operation method thereof as well as

wearable electronic devices for detecting biometric information. Oura admits that Samsung purports to have identified the Accused Products to include Oura's Oura Ring products. To the extent not specifically and expressly admitted, Oura denies all other allegations and characterizations in Paragraph 17.

V. THE ASSERTED PATENTS AND NONTECHNICAL DESCRIPTION OF THE INVENTIONS

18. Oura admits that Exhibits 5-8 purport to be copies of Assignment Records to the Asserted Patents. Oura admits that Appendices A-D purport to be copies of the prosecution histories of each of the Asserted Patents. To the extent a further response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 18 and, on that basis, denies the same.

A. The '359 Patent¹

19. Oura admits that, on its face, United States Patent No. 10,642,359 is entitled "Wearable Biosignal Interface and Method Thereof," issued on May 5, 2020, and names Chang Mok Choi, Sang Joon Kim, and Seung Keun Yoon as the alleged inventors. Oura admits that, on its face, the '359 patent issued from 16/267,752, filed on February 5, 2019, which was a continuation application of U.S. Patent App. Ser. No. 14/913,085, filed on February 19, 2016, which is a U.S. National Stage Application of International Application No. PCT/KR2014/004073, filed on May 8, 2014. Oura admits that, on its face, the '359 patent claims priority to Korean Patent App. No. 10-2013-0098476, filed on August 20, 2013. To the extent a further response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 19 and, on that basis, denies the same.

¹ Oura states that footnote 1 to § V.A contains no allegations for Oura to admit or deny. To the extent not specifically and expressly admitted, Oura denies all allegations and characterizations therein.

20. Oura admits that the '359 patent contains 34 claims, including 4 independent claims and 30 dependent claims. Oura denies that Oura's wearable devices infringe claims 1-2, 4, 7-8, 10, 14-15, and 20 of the '359 patent.

21. Oura disagrees with Samsung's characterization of the '359 Patent and therefore, denies such allegations.

B. The '677 Patent

22. Oura admits that, on its face, United States Patent No. 10,945,677 is entitled "Method for Detecting Biometric Information and Electronic Device Using Same," issued on March 16, 2021, and names Gihung Chung, Jooman Han, So Hyun Chung, Dae-Yong Lee, Hongsig Kim, Hyunwoo Jang, Cheolho Cheong, Jae-Woong Chun, and Won Suk Choi as the alleged inventors. Oura admits that, on its face, the '677 patent issued from U.S. Patent App. Ser. No. 16/256,497, filed on January 24, 2019, which was a continuation application of U.S. Patent App. Ser. No. 15/173,099, filed on June 3, 2016, which was issued as U.S. Pat. No. 10,231,675 on March 19, 2019. Oura admits that, on its face, the '359 patent claims priority to Korean Patent App. No. 10-2015-0113972, filed on August 12, 2015. To the extent a further response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 22 and, on that basis, denies the same.

23. Oura admits that the '677 patent contains 20 claims, including 3 independent claims and 17 dependent claims. Oura denies that Oura's wearable devices infringe claims 1-7, 9-14, and 16-20 of the '677 patent.

24. Oura disagrees with Samsung's characterization of the '677 Patent and therefore denies such allegations.

C. The '675 Patent

25. Oura admits that, on its face, U.S. Patent No. 10,231,675 is entitled “Method for Detecting Biometric Information and Electronic Device Using Same,” issued on March 19, 2019, and names Gihung Chung, Jooman Han, So Hyun Chung, Dae-Yong Lee, Hongsig Kim, Hyunwoo Jang, Cheolho Cheong, Jae-Woong Chun, and Won Suk Choi as the alleged inventors. Oura admits that, on its face, the '675 patent issued from U.S. Patent App. Ser. No. 15/173,099, filed on June 3, 2016. Oura admits that, on its face, the '675 patent claims priority to Korean Patent App. No. 10-2015-0113972, filed on August 12, 2015. To the extent a further response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 25 and, on that basis, denies the same.

26. Oura admits that the '675 patent contains 20 claims, including 3 independent claims and 17 dependent claims. Oura denies that Oura's wearable devices infringe claims 13-20 of the '675 patent.

27. Oura disagrees with Samsung's characterization of the '675 Patent and therefore denies such allegations.

D. The '789 Patent

28. Oura admits that, on its face, United States Patent No. 10,978,789 is entitled “Electronic Device Including High-Frequency Transmission Circuit,” issued on April 13, 2021, and names Han-Min Cho, Chan-Gi Park, Yeon-Sang Yun, Tae-Wook Ham, Hei-Seong Kwak, Byoung-Il Son, and Sung-Chul Park as the alleged inventors. Oura admits that, on its face, the '789 patent issued from U.S. Patent App. Ser. No. 16/939,708, filed on July 27, 2020, which was a continuation application of U.S. Patent App. Ser. No. 15/621,687, filed on June 13, 2017. Oura admits that, on its face, the '789 patent claims priority to Korean Patent App. No. 10-2016-

0073355, filed on June 13, 2016. To the extent a further response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 28 and, on that basis, denies the same.

29. Oura admits that the '789 patent contains 20 claims, including 3 independent claims and 17 dependent claims. Oura denies that Oura's wearable devices infringe claims 7-10 of the '789 patent.

30. Oura disagrees with Samsung's characterization of the '789 Patent and therefore, denies such allegations.

VI. RESPONDENTS' UNLAWFUL AND UNFAIR ACTS

31. Oura denies that Oura has engaged in unlawful and unfair acts, including the sale for importation into the United States, importation into the United States, and/or sale within the United States after importation of products that directly infringe one or more of the Asserted Claims. To the extent not specifically and expressly admitted, Oura denies all other allegations and characterizations in Paragraph 31.

32. Oura denies that it intends and actively induces its customers, distributors, and/or end users of the Accused Products to directly infringe any of the Asserted Claims. Oura admits that Samsung has purportedly attached an Oura website as Exhibit 21, which Samsung has purported to have last accessed on December 12, 2025. Oura admits that it has been aware of the '359, '677, '675, and '789 patents at least as of when it was served with this Complaint, but denies that it has acted with willful blindness to their existence. Paragraph 32 states legal conclusions or opinions regarding the Asserted Patents, so no response is required. To the extent a response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 32 and, on that basis, denies the same.

33. Oura denies that Oura contributorily infringes at least one of the Asserted Claims of the '359, '677, '675, and '789 patents. Oura denies that it contributes to the infringement by their customers, distributors, and/or end users, and Oura denies it has known since the filing of this Complaint that the Accused Products are especially made or especially adapted for use in infringing at least one of the Asserted Claims of the '359, '677, '675, and '789 patents. Oura denies that the Accused Products are not suitable for substantial non-infringing use. Paragraph 33 states legal conclusions or opinions regarding the Accused Products, so no response is required. To the extent a response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 33 and, on that basis, denies the same.

34. Oura admits that Samsung has purported to mark a physical sample of the Accused Product as Exhibit 34 and was purportedly made available in accordance with Commission procedures and rules. Oura has not seen the physical sample purportedly marked as Exhibit 34 and, at least on that basis, denies the truth of any remaining allegations of Paragraph 34.

35. Oura admits that Samsung has purportedly attached claim charts comparing the '359, '677, '675, and '789 patents' independent Asserted Claims to Respondents' Accused Product as Exhibits 13-16. Oura admits that Samsung has purportedly attached copies of documents cited in the claim charts as Exhibits 17-20. Oura denies that any of the documents identified as Exhibits 13-20 show infringement. To the extent a further response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 35 and, on that basis, denies the same.

VII. SPECIFIC INSTANCES OF UNFAIR IMPORTATION

36. Oura denies that it, either itself or through subsidiaries or third parties acting on its behalf, is engaged in the manufacture, importation, sale for importation, offer for sale after importation, sale and/or use after importation into the United States of the Accused Products. Oura

denies that the specific instances Samsung sets forth in Paragraphs 37-39 are representative examples of Oura's unlawful manufacture, importation, sale for importation, offer for sale after importation, sale and/or use after importation into the United States of infringing products.

37. Oura admits that some of the Accused Products are manufactured in Mexico and then shipped to the United States. Oura admits that it sells and offers for sale the Accused Products directly to customers in the United States, including through its website (<https://ouraring.com>), which states that Oura ships the Accused Products to the United States (excluding US territories). Oura admits that Exhibit 22 purports to be a screenshot from Oura's website. To the extent a further response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 37 and, on that basis, denies the same.

38. Oura disagrees with Samsung's characterization of a "representative Accused Product," and on that basis denies it. Oura admits that Samsung has purportedly attached a copy of an invoice showing an order placement date of November 2, 2025, as Exhibit 23. To the extent a further response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 38 and, on that basis, denies the same.

39. Oura admits that Exhibit 24 purports to be a photograph of a package for Oura Ring 4 that states "Made in Mexico." To the extent a further response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 39 and, on that basis, denies the same.

VIII. CLASSIFICATION OF THE INFRINGING PRODUCTS UNDER THE HARMONIZED TARIFF SCHEDULE

40. Oura admits that at least some of the items identified by Respondents as Accused Products fall within the 9031.80.8085 classification under the Harmonized Tariff Schedule of the United States. *See also* Ex. A. Oura states that the remainder of Paragraph 40 contains no

allegations for Oura to admit or deny. To the extent not specifically and expressly admitted, Oura denies all allegations and characterizations therein.

IX. RELATED LITIGATION

41. Oura admits that on May 30, 2024, Complainant SEC filed suit against Oura in the United States District Court for the Northern District of California, Case No. 3:24-cv-03245, seeking declaratory judgment of non-infringement as to the following patents owned by Oura: U.S. Patent Nos. 10,842,429; 11,868,178; 11,868,179; 10,893,833; and 11,599,147.

42. Oura admits that on October 23, 2025, Ouraring Inc. filed suit against SEA in the United States District Court for the Eastern District of Texas, Case No. 2:25-cv-01064, asserting infringement on U.S. Patent Nos. 11,868,178; 12,353,244; 12,346,159; 12,393,227; 12,346,160; 12,422,889; 12,429,909; and 12,222,759.

43. Oura admits that on November 18, 2025, Ouraring Inc. requested the United States International Trade Commission to institute an investigation into violations of Section 337 against SEC and SEA; Reebok International Limited, RILUK IPCO Limited, The Original Fit Factory Ltd, Truconnect Ltd, and Reebok International Ltd., LLC (together, “Reebok”); Zepp Health Corporation, Anhui Huami Information Technology Co., Ltd., Zepp Inc. (d/b/a Zepp Health), and Zepp North America Inc. (together, “Zepp”); and Nexxbase Marketing Pvt. Ltd. (d/b/a Noise and LunaZone) (“Nexxbase”). Oura admits that Ouraring Inc. asserted infringement on U.S. Patent Nos. 11,868,178; 12,353,244; 12,346,159; 12,393,227; 12,346,160; 12,422,889; 12,429,909; and 12,222,759.

44. Oura admits that on December 1, 2025, Samsung filed suit against Oura Health Oy in the United States District Court for the Eastern District of Texas, Case No. 2:25-cv-1181 asserting infringement on U.S. Patent Nos. 7,662,065; 9,008,973; 12,260,672; 12,279,849; 12,324,655; and 12,383,152.

X. THE DOMESTIC INDUSTRY

45. Oura denies that Samsung has established that a domestic industry in the United States exists with respect to articles protected by the '359, '677, '675, and '789 patents. Paragraph 45 states legal conclusions or opinions regarding the Asserted Patents, so no response is required. To the extent a response is required, Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 45 and, on that basis, denies the same.

A. Articles that Practice the Asserted Patents (Technical Prong)

46. Oura admits that Samsung purports to have marked a physical sample of the Samsung Domestic Industry Product as Exhibit 33. Oura has not seen the physical sample purportedly marked as Exhibit 33 and, at least on that basis, denies the truth of any remaining allegations of Paragraph 46.

47. Oura admits that Samsung purports to have attached a claim chart comparing the Samsung Galaxy Smartwatches and Galaxy Ring to a claim of the '359 patent as Exhibit 25. Oura admits that Samsung purports to have attached copies of documents referenced in the claim chart in Exhibit 29. Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 47 and, on that basis, denies the same.

48. Oura admits that Samsung purports to have attached a claim chart comparing the Samsung Galaxy Smartwatches and Galaxy Ring to a claim of the '677 patent as Exhibit 26. Oura admits that Samsung purports to have attached copies of documents referenced in the claim chart in Exhibit 30. Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 48 and, on that basis, denies the same.

49. Oura admits that Samsung purports to have attached a claim chart comparing the Samsung Galaxy Smartwatches and Galaxy Ring to a claim of the '675 patent as Exhibit 27. Oura

admits that Samsung purports to have attached copies of documents referenced in the claim chart in Exhibit 31. Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 49 and, on that basis, denies the same.

50. Oura admits that Samsung purports to have attached a claim chart comparing the Galaxy S25 smartphone to a claim of the '789 patent as Exhibit 28. Oura admits that Samsung purports to have attached copies of documents referenced in the claim chart in Exhibit 32. Oura lacks sufficient knowledge or information to form a belief as to the truth of the remaining allegations of Paragraph 50 and, on that basis, denies the same.

51. Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 51 and, on that basis, denies the same.

B. United States Economic Activities Relating to the Domestic Industry Products (Economic Prong)

52. Oura lacks sufficient knowledge or information to form a belief as to the truth of the allegations of Paragraph 52 and, on that basis, denies the same.

XI. RELIEF REQUESTED

53. Oura incorporates by reference its responses in Sections I-X above. Paragraph 53 states legal conclusions or opinions, so no response is required. To the extent a response is required, Oura denies that it has violated Section 337 and that any of its products infringe, directly or indirectly, literally or under the doctrine of equivalents, any asserted claim of the Asserted Patents. Oura denies that Samsung has any valid case against Oura pursuant to Section 337 of the Tariff Act of 1930, as amended. Oura denies that Samsung is entitled to obtain, or that the U.S. International Trade Commission should issue, any of Samsung's requested relief, including any kind of exclusion order, cease and desist order, or any other form of relief.

RESPONSES TO NOTICE OF INSTITUTION OF INVESTIGATION

Oura acknowledges that the Commission has instituted an investigation as set forth in the Commission's Notice of Institution of Investigation published in the Federal Register on January 16, 2026, at 91 Fed. Reg. 11, 2153-54. Oura denies that it unlawfully imports into the United States, sells for importation into the United States, or sells within the United States after importation any Accused Products that infringe, directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the Asserted Patents. Oura denies that there has been any violation of 19 U.S.C. § 1337 by Oura in the importation into the United States, sale for importation, or sale within the United States after importation of certain "wearable devices" by reason of infringement of any asserted claims of any of the '359, '677, '675, and '789 Patents. *See* Notice of Institution of Investigation, 91 Fed. Reg. 11, 2153-54 (Jan. 16, 2026). Oura further contends that the asserted claims of the '359, '677, '675, and '789 Patents are invalid and therefore cannot support any remedy for alleged infringement. Oura denies that Samsung will be able to establish that a domestic industry exists as to any valid and enforceable asserted claim of the '359, '677, '675, and '789 Patents. Oura denies that Samsung is entitled to any relief as a result of this Investigation.

I. STATEMENT PURSUANT TO COMMISSION RULE 210.13(b)

See Confidential Exhibit A to this Response.

II. AFFIRMATIVE AND OTHER DEFENSES

Oura alleges and asserts the following defenses in response to the allegations in the Complaint. Oura is still collecting and reviewing information in connection with this Investigation that is relevant to potentially available defenses to the allegations in the Complaint. Oura reserves the right to supplement and/or amend its defenses as the Investigation progresses.

First Affirmative Defense
(Failure to State a Claim)

Samsung's claims for relief set forth in the Complaint fail in whole or in part as they fail to state a claim upon which any relief may be granted against Oura.

Second Affirmative Defense
(Non-Infringement)

Oura does not violate Section 337 or unlawfully import into the United States, sell for importation into the United States, or sell within the United States after importation any Accused Products that infringe, directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable claim of the Asserted Patents. Oura has not directly infringed, contributed to the infringement of, or induced infringement of any valid and enforceable asserted claim of Asserted Patents, either literally or under the doctrine of equivalents, and have not otherwise committed any acts in violation of 35 U.S.C. § 271 or 19 U.S.C. § 1337, as amended.

Third Affirmative Defense
(Invalidity)

One or more asserted claims of the asserted '359, '677, '675, and '789 Patents are invalid or void for failure to satisfy one or more of the requirements in Part II of Title 35 of the United States Code, including, but not limited to, §§ 101, 102, 103, and/or 112. More specifically, with respect to its defenses under 35 U.S.C. §§ 102 and 103, Oura provides a non-exhaustive identification of exemplary prior art for each of the asserted '359, '677, '675, and '789 Patents at Exhibit B attached hereto. The prior art listed therein is exemplary only and should not be construed as limiting in any way the defenses that Oura may present in this investigation. Oura's investigation is ongoing. In addition, Oura may rely on any prior art that is cited on the face of the asserted patents, admissions in the patents and their file histories, and any other references that Oura may identify.

Fourth Affirmative Defense
(Lack Of Domestic Industry)

On information and belief, Samsung has failed to and will not be able to demonstrate that a protectable domestic industry exists with respect to any valid and enforceable claim of the '359, '677, '675, and '789 Patents.

Fifth Affirmative Defense
(No Import Violation)

Oura denies that it imports, sells for importation, or sells after importation, any products that fall within the scope of the Notice of Investigation. Samsung has failed to and will not be able to demonstrate that Oura has imported, sold for importation, or sold after importation into the United States any product that infringes any valid and enforceable asserted claim of the '359, '677, '675, and '789 Patents at the time of importation.

Sixth Affirmative Defense
(Prosecution History Estoppel, Prior Art Estoppel, and/or Argument-based Estoppel)

Samsung is estopped from construing any asserted claim of the '359, '677, '675, and '789 Patents, including to cover any alleged DI Product or Accused Products, inconsistent with any representations made (a) to the United States Patent and Trademark Office during prosecution of the Asserted Patents or related patents and patent applications, and (b) in the specifications and claims of the Asserted Patents. Samsung's claims against Oura are barred, in whole or in part, by the doctrines of prosecution history estoppel, prior art estoppel (ensnarement), and/or argument-based estoppel.

Seventh Affirmative Defense
(Lack Of Standing and Ownership)

To the extent that Samsung does not have substantially all the rights to the Asserted Patents, or the purported assignments are defective, Samsung lacks standing to bring this action.

Eighth Affirmative Defense
(License/Patent Exhaustion)

Samsung's claims are barred in whole or in part by virtue of express licenses, which cover the Accused Products. For example, to the extent the Accused Products include any component supplied by any of Samsung's licensees, any patent rights that Samsung has over such component are exhausted by the sale of those components to Oura by the licensee.

Ninth Affirmative Defense
(No Unfair Act)

Oura has committed no unfair act.

Tenth Affirmative Defense
(Waiver, Laches, Unenforceability, Estoppel, and Other Defenses)

Samsung's claims are barred, in whole or in part, to the extent there are any applicable doctrines of waiver, laches, unenforceability, estoppel, and/or patent exhaustion.

Eleventh Affirmative Defense
(Inventorship)

To the extent that any of the alleged inventors did not invent the purported inventions claimed in the Asserted Patents, or to the extent that the actual inventors are not named as inventors, the Asserted Patents are invalid and/or unenforceable.

Twelfth Affirmative Defense
(Malicious Prosecution and Abuse of Process)

Samsung's claims are barred, in whole or in part, by naming Oura as a Respondent in this Section 337 Investigation for an improper purpose including, for example, retaliation against Oura naming Complainant entities as Respondents in Inv. No. 337-1468.

Thirteenth Affirmative Defense
(Relief Not in the Public Interest)

Samsung's demand for relief is not in the public interest under Section 337(d)(1). Any exclusion order(s) or cease-and-desist order(s) would adversely affect the public health and

welfare, competitive conditions in the United States economy, the production of like or directly competitive articles in the United States, and/or United States consumers. The public interest, therefore, precludes issuance of the requested remedial orders in accordance with 19 U.S.C. § 1337(d)(1) and (f)(1).

Fourteenth Affirmative Defense
(Prosecution Laches)

On information and belief, Samsung's claims for relief are barred, in whole or in part, because the Asserted Patents are equitably unenforceable under the doctrine of prosecution laches.

Other Affirmative Defenses

Oura further reserves the right to amend its Responses to include other affirmative defenses that it may learn of during the course of this Investigation.

PRAYER FOR RELIEF

WHEREFORE, Oura respectfully requests that the Commission:

- a. Deny all relief requested by Samsung;
- b. Find that the Commission lacks jurisdiction over Oura since it does not import, sell for importation, or sell after importation, any products that fall within the scope of the Notice of Investigation;
- c. Find that Oura has not infringed any asserted claims of the '359, '677, '675, and '789 Patents;
- d. Find that each asserted claim of the '359, '677, '675, and '789 Patents is invalid or otherwise unenforceable;
- e. Find that there is no protectable domestic industry in any asserted claim of the '359, '677, '675, and '789 Patents;

- f. Find that Samsung lacks standing to bring an action for infringement of the '359, '677, '675, and '789 Patents;
- g. Find that Oura has committed no unfair act;
- h. Find that Oura does not violate Section 337 of the Tariff Act of 1930, as amended;
- i. Issue an order terminating the Investigation with prejudice; and
- j. Award Oura such other and further relief as the Commission deems appropriate.

Dated: February 17, 2026

Respectfully Submitted,

/s/ Jasjit S. Vidwan

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Saqib J. Siddiqui
Bryan C. Nese
Michael L. Lindinger
Tiffany A. Miller
Clark S. Bakewell
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**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of
CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**VERIFICATION OF RESPONSE TO FIRST AMENDED COMPLAINT AND NOTICE OF
INVESTIGATION**

Under penalty of perjury under the laws of the United States, I, Avonte Campinha-Bacote, declare in accordance with 19 C.F.R. §§ 210.4 and 210.13(b) that the following statements are true:

1. I am the Chief Legal Officer for Ouraring Inc., and I am duly authorized to execute this verification on behalf of Respondents Ouraring Inc. and Oura Health Oy (“Oura”);
2. I have read the foregoing Response and am aware of its contents;
3. To the best of my knowledge, information, and belief, and based upon a reasonable inquiry under the circumstances, the facts, allegations, contentions, and defenses in the Response:
 - a. are not being made for any improper purpose;
 - b. are well grounded in fact and are warranted by existing law or a good-faith argument for the extension, modification, or reversal of existing law;
 - c. have evidentiary support or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery; and
 - d. to the extent they deny factual contentions, are warranted on the evidence or are reasonably based on a lack of information or belief.

Executed on: February 17, 2026


Avonte Campinha-Bacote

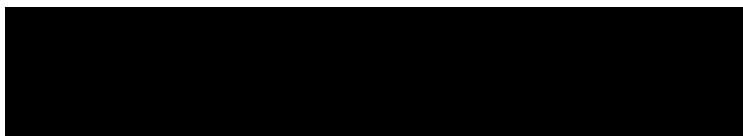


Exhibit A

[REDACTED]

STATEMENT PURSUANT TO COMMISSION RULE 210.13(b)

Pursuant to Commission Rule 210.13(b), Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura”) provide the following information with the sole intention of supplying statistical data and other information required by 19 C.F.R. § 210.13(b) as to the alleged Accused Products, which is defined in the Notice of Investigation as “wearable devices” (91 Fed. Reg. 11, 2153-54 (Jan. 16, 2026)). Complainants Samsung Electronics Co., Ltd. (“SEC”) and Samsung Electronics America, Inc. (“SEA”) (collectively, “Samsung”) have purported to identify these Accused Products as certain “certain wearable devices.” (Compl., ¶ 1).

Oura is providing information regarding the alleged Accused Products as defined in the Notice of Investigation, but Oura denies that any of those products are being unfairly imported in violation of 19 U.S.C. § 1337. Oura specifically denies that the alleged Accused Products infringe, directly or indirectly, literally or under the doctrine of equivalents, any valid and enforceable asserted claim of any of the Asserted Patents at the time of importation or at any other time.

As this Investigation only recently commenced, Oura reserves the right to amend and/or supplement the information provided below as appropriate as discovery and this Investigation proceeds.

Statistical Data on Imports. From October 2025 through December 2025, Oura imported

[REDACTED].

Harmonized Tariff Schedules. The alleged Accused Products in this Investigation have been imported under the following classifications of the Harmonized Tariff Schedules of the United States:

- 9031.80.80
- 9031.80.8085
- 9031809999

[REDACTED]

Production Capacity. One or more of Oura and its contracting companies has significant capacity to manufacture the alleged Accused Products.

Significance of the U.S. Market. Oura believes that the [REDACTED] for the alleged Accused Products and that the [REDACTED] [REDACTED].

Name and Addresses of the Suppliers of Accused Products. The following contracting companies manufacture and supply the alleged Accused Products imported into the United States:

[REDACTED]

[REDACTED]

Exhibit B

'359 Patent Prior Art:

Relevant prior art includes, but is not limited to:

Patent No.	Pub. Date
US9582034 B2	2015-08-06
US20120016245 A1	2012-01-19
US8954135 B2	2015-02-10
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Declaration of Dr. Brian W. Anthony for U.S. Pat. No. 10,139,859 - <i>Samsung Elecs. Co., Ltd. v. Oura Health Oy</i> , No. IPR2024-001077, Paper 1, Ex-1002 (PTAB June 28, 2024)
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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONSE OF OURARING INC. AND OURA HEALTH OY TO THE FIRST AMENDED COMPLAINT UNDER SECTION 337 OF THE TARIFF ACT OF 1930, AS AMENDED, AND NOTICE OF INSTITUTION OF INVESTIGATION** was served upon the following as indicated below on February 17, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: dstrainor@omm.com

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*